

22STCV22996 22STCV22996

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Case Number: 22STCV22996 Hearing Date: July 10, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 51

HEARING DATE: July
10,2026

CASE NAME: Carmen

Barton v. Cedars-Sinai Medical Center, et al.

CASE NO.: 22STCV22996

MOTION

FOR SUMMARY JUDGMENT

MOVING PARTY: Defendant

CEDARS-SINAI MARINA DEL REY HOSPITAL, erroneously sued herein as CEDARS-SINAI
MEDICAL CENTER

RESPONDING PARTY(S): Plaintiff Carmen Barton

REQUESTED RELIEF:

1. An
order granting summary judgment.

TENTATIVE RULING:

1. Summary

Judgment is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On July 14, 2022, Plaintiff Carmen Barton (Plaintiff) filed a Complaint against Defendants Cedars-Sinai Medical Center, Jonas Castaneda-Panuco, Elijah Burton, and Bayliss Yarnell (Defendants) with two causes of action for: (1) Pain and Suffering and (2) Wrongful Death.

According to the Complaint, Plaintiff's husband, Anthony Nicholas Cathan, Jr. (Decedent), died due to Defendants' negligence in his medical care. Plaintiff alleges Defendants' failed to correctly diagnose Decedent's condition and discharged him.

LEGAL STANDARD:

A party may move for summary judgment in any action or proceeding if it is contended the action has no merit or that there is no defense to the action or proceeding. (Code Civ. Proc., §437c, subd. (a).) To prevail on a motion for summary judgment, the evidence submitted must show there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., §437c, subd. (c).) In other words, the opposing party cannot present contrary admissible evidence to raise a triable factual dispute.

"A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).)

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When ruling on a summary judgment motion, the trial court must consider all inferences from the evidence, even those contradicted by the moving party's evidence. The motion cannot succeed unless the evidence leaves no room for conflicting inferences as to material facts; the court has no power to weigh one inference against another or against other evidence. (*Murillo v. Rite Stuff Food Inc.* (1998) 65 Cal. App. 4th 833, 841.) In determining whether the facts give rise to a triable issue of material fact, "the facts alleged in the evidence of the party opposing summary judgment and the reasonable inferences there from must be accepted as true." (*Jackson v. County of Los Angeles* (1997) 60 Cal. App. 4th 171, 179.)

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With a summary judgment motion, a three-step analysis is required of the trial court. (*AARTS Productions, Inc. v. Crocker Nat'l Bank* (1986) 179 Cal. App. 3d 1061, 1064–65.) First, the trial court must identify the issues framed by the pleadings since it is these allegations to which the motion must respond by establishing a complete defense or otherwise showing there is no factual basis for relief on any theory reasonably contemplated by the opponent's pleading. (*Ibid.*) Secondly, the court must determine whether the moving party's showing has established facts which negate the opponent's claim and justify a judgment in movant's favor. (*Ibid.*) When a summary judgment motion *prima facie* justifies a judgment, the third and final step is to determine whether the opposition demonstrates the existence of a triable, material factual issue. (*Ibid.*) On a plaintiff's motion for summary judgment, the plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and that there is no defense thereto. (Code Civ. Proc., § 437c, subd. (o)(1); *Aguilar v. Atlantic Richfield Company, et al.* (2001) 25 Cal. 4th 826, 850.)

ANALYSIS:

Defendant contends Plaintiff cannot establish causation because Defendant presented competent expert testimony that, to a reasonable degree of medical probability, no act or omission by Defendant CSMDRH and its nursing and ancillary staff was a substantial factor in causing Decedent's injuries or death. Defendant argues Plaintiff failed to rebut this showing because Plaintiff's expert never opines, to a reasonable degree of medical

probability, that Defendant's conduct caused or contributed to Decedent's death.

"The elements of a wrongful death cause of action are "(1) a 'wrongful act or neglect' on the part of one or more persons that (2) 'cause[s]' (3) the 'death of [another] person.' " (Arista v. County of Riverside (2018) 29 Cal.App.5th 1051, 1060, as modified on denial of reh'g (Dec. 13, 2018)). In "any medical malpractice action, the plaintiff must establish: "(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence." (Powell v. Kleinman (2007) 151 Cal.App.4th 112, 122). In professional malpractice cases, expert opinion testimony is required to prove or disprove that the defendant performed in accordance with the prevailing standard of care [citation], except in cases where the negligence is obvious to laymen." (Garibay v. Hemmat (2008) 161 Cal.App.4th 735, 741).

Further, the court in Bromme stated that a plaintiff proves causation if they can demonstrate "reasonable medical probability" that the negligence was sufficient of itself to bring about the death, i.e., the death was "more likely than not" the result of the negligence." (Bromme v. Pavitt (1992) 5 Cal.App.4th 1487, 1499 (Bromme).) "[A] plaintiff who alleges a statutory cause of action for wrongful death arising from medical negligence must prove by reasonable medical probability based on competent expert testimony that a defendant's acts or omissions were a substantial factor in bringing about the decedent's death. Where the alleged negligence relates to the failure to diagnose and treat a potentially terminal condition, a plaintiff fails to satisfy the requisite causation if the evidence shows the decedent did not have a greater than 50 percent chance of survival had the defendant properly diagnosed and treated the condition. (Id. at pp. 1492–1493.) "When a defendant moves for summary judgment and supports [the] motion with expert declarations that [the] conduct fell within the community standard of care, [defendant] is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." (Webster v. Claremont Yoga (2018) 26 Cal.App.5th 284, 288–289.)

Here, Defendant satisfied its initial burden through the

declaration of Dr. Mower. Dr. Mower opined, to a reasonable degree of medical probability, that no act or omission by Defendant CSMDRH or its nursing and ancillary staff was a substantial factor in causing or contributing to Mr. Carthan's injuries or death. Indeed, Dr. Mower expressly concluded that nothing Defendant did or failed to do caused or contributed to Mr. Carthan's death. (UMF No. 25.) Defendant therefore met its burden of demonstrating that Plaintiff cannot establish the essential element of causation.

The burden therefore shifted to Plaintiff to present competent expert testimony creating a triable issue of material fact. Plaintiff failed to do so. Plaintiff's expert, Dr. Flanigan, opines only that "to a reasonable degree of medical probability, there was a significant likelihood that [Decedent] could have survived the surgical intervention for his condition." (Flanigan Decl., ¶ 5.) This opinion does not state that Decedent would, more likely than not, have survived absent Defendant's alleged negligence. Nor does Dr. Flanigan opine, to a reasonable degree of medical probability, that any act or omission by Defendant was a substantial factor in causing or contributing to Decedent's death. Likewise absent is any reasoned explanation connecting Defendant's alleged conduct to Decedent's death. An opinion that Decedent could have survived or had a "significant likelihood" of surviving surgery is insufficient to satisfy Plaintiff's burden under Bromme to demonstrate a reasonable medical probability that Defendant's alleged negligence was a substantial factor in causing the death.

Accordingly, Plaintiff has failed to raise a triable issue of material fact as to causation. Because causation is an essential element of Plaintiff's wrongful death and medical negligence claims, Defendant is entitled to summary judgment. (Code Civ. Proc., § 437c, subd. (p)(2).)

Accordingly, the court GRANTS Defendant's motion for summary judgment.

CONCLUSION:

For the foregoing reasons, the Court decides the pending motion as follows:

Motion for Summary Judgment is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: July 10, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court